

Correction Slip No. 3

1. In Section 8 (Clauses of Contract), in the table of contents, a new row as mentioned below is added after Clause No. 55.0:

CLAUSE NO.	SUBJECT
56.0	Limitation of Liability

2. In Section 8, (Clauses of Contract), a new Clause 56.0 is added after Clause 55.0:

Clause 56.0 Limitation of Liabilities

Except in cases of criminal negligence or wilful misconduct:

1. the aggregate liability of the Contractor to MITES/Employer, whether under the Contract, in tort or otherwise, shall not exceed the total Contract Price, provided that this limitation shall not apply to the cost of repairing or replacing defective equipment/ work under warranty Clause, Defect Liability clause or otherwise, or to any obligation of the Contractor to indemnify the MITES/Employer including on grounds of IPR & Confidentiality infringement.
2. the aggregate liability of MITES/Employer to the Contractor, whether under the Contract, in tort or otherwise, shall not exceed the total Contract Price less payments already released to the Contractor.
3. neither Party shall be liable to the other Party, whether in Contract, tort, or otherwise, for any indirect or consequential loss or damage, loss of use, loss of production, or loss of profits or interest costs, which may be suffered by the other Party in connection with the Contract, provided that this exclusion shall not apply to any obligation of the Contractor to pay liquidated damages to the MITES/Employer.

No. e-file C. No. 74439/MITES/CPC/GCC/Correction Slip No. 3 (GCC for Works)

Date: 19.01.2026

The above Correction Slip No. 3 to General Conditions of Contract for Works, February 2023, is issued with the approval of the Competent Authority.

(Sushil Yadav)
GGM / F-1 / CPC
Date: 19/1/2026

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